

****28.05.2024****

****A New Sanction for Non-Compliance with GDPR****

The National Supervisory Authority for Personal Data Processing completed, in April 2024, an investigation into the operator S.C. Rompetrol Downstream S.R.L. and found violations of the provisions of Article 29, Article 32 paragraph (1) letter b), and Article 32 paragraphs (2) and (4) of Regulation (EU) 2016/679 (GDPR).

As such, the operator was sanctioned with an administrative fine of 9,935.60 lei, equivalent to 2,000 EURO.

The investigation was initiated following the fact that the operator submitted two notifications to the National Supervisory Authority regarding the occurrence of personal data security breaches, related to processing via the WhatsApp messaging application and subsequently the unauthorized disclosure on two social media networks of data belonging to clients (images of the data subjects, license plate numbers, and the make of their vehicles) recorded by the video surveillance systems at two Rompetrol Downstream SRL gas stations.

During the investigation, it was found that the operator S.C. Rompetrol Downstream S.R.L. had not implemented appropriate technical and organizational measures to ensure a level of security commensurate with the risk presented by the processing, which led to the compromise of the confidentiality of personal data of its clients through unauthorized disclosure on social media. The operator had the obligation to take measures to ensure that any natural person acting under its authority or that of a person authorized by the operator and who has access to personal data processes them only at the request of the operator, in order to ensure the continuous protection of the data against unauthorized processing, considering that Rompetrol Downstream SRL is responsible for ensuring the integrity and confidentiality of the data, according to Article 5 paragraph (1) letter f) and paragraph (2) of Regulation (EU) 2016/679.

At the same time, under Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, the following corrective measure was ordered against Rompetrol Downstream SRL: to implement mechanisms/solutions for verifying/monitoring the instructions/working procedures/data protection policies during the contractual relationships with the persons authorized by the operator, to ensure compliance with GDPR, in order to avoid similar incidents.

****Legal and Communication Directorate****

****A.N.S.P.D.C.P.****